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Part 5: Office Zones

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PURPOSE

The purpose of this Part is to provide Office Zones that allow small concentrations of office space in appropriate locations throughout the City.[1]

5.1 GENERAL PROVISIONS FOR OFFICE ZONES

In addition to the provisions contained in Parts 1 to 3 of this By-law, the following General Provisions for Office Zones shall also apply:

5.1.1 Uses to be Located within a Building

5.1.1.1 Unless otherwise permitted, all **uses** in Office Zones shall be located wholly within a **building**, **structure** or part thereof. *(0121-2020/LPAT Order 2021 March 11)*

5.1.2 Uses Accessory to a Permitted Use in an O1 Zone

5.1.2.1 The following **uses** are permitted accessory to a permitted **use** in an O1 zone: *(0111-2019/LPAT Order 2021 March 09), (0121-2020/LPAT Order 2021 March 11)*

(1) Medical Supply and Equipment Store
(2) **Restaurant**
(3) **Take-out Restaurant**
(4) Pharmacy
(5) Fitness Centre
(6) Convenience Store
(7) **Service Establishment**
(8) **Day Care**

5.1.2.2 A maximum of 20% of the total **gross floor area - non-residential** of each **building** used for a permitted **use** contained in Subsection 5.2.1 of this By-law shall be used for **uses** accessory to a permitted **use**.

5.1.3 Uses Accessory to a Permitted Use in O2 and O3 Zones

5.1.3.1 The following **uses** are permitted accessory to a permitted **use** in an O2 and O3 zone: *(0111-2019/LPAT Order 2021 March 09), (0121-2020/LPAT Order 2021 March 11), (0217-2023), (0203-2023/OLT Order 2024 September 09)*

(1) **Retail Store**
(2) Outdoor Market
(3) **Manufacturing Facility**
(4) **Motor Vehicle Rental Facility**
(5) **Restaurant**
(6) **Take-out Restaurant**
(7) **Service Establishment**
(8) **Commercial School**
(9) **Financial Institution**
(10) **Veterinary Clinic**
(11) **Animal Care Establishment**
(12) **Entertainment Establishment**
(13) **Recreational Establishment**
(14) **Private Club**
(15) *deleted*
(16) **Day Care**

5.1.3.2 Unless otherwise permitted, the **uses** contained in Article 5.1.3.1 of this By-law shall be located within a **building**, **structure** or part thereof used for a **use** contained in Subsection 5.2.1 of this By-law.

[1] The purpose statement is for clarification purposes and does not form part of this By-law.

5.1.3.3 A maximum of 30% of the total **gross floor area - non-residential** of each **building** in an O2 zone used for a permitted **use** contained in Subsection 5.2.1 of this By-law shall be used for **uses** accessory to a permitted **use**.

5.1.3.4 A maximum of 20% of the total **gross floor area - non-residential** of each **building** in an O3 zone used for a permitted **use** contained in Subsection 5.2.1 of this By-law shall be used for **uses** accessory to a permitted **use**.

5.1.3.5 On a **lot** at an intersection where both **streets** are identified on Schedules 5.2.1(1) and 5.2.1(2) of this By-law, any **building** with a setback less than or equal to 5.0 m from the **street line** to one or both of the **streets**, shall have a maximum of 90% of the total **gross floor area - non-residential** of the **first storey** for a permitted **use** in Lines 2.1 and 2.2 contained in Table 5.2.1 of this By-law.

5.1.3.6 A **manufacturing facility** shall not be permitted in a **building** that is within 100.0 m from a **street** identified on Schedule 5.2.1(1) of this By-law.

5.1.3.7 A maximum of 20% of the total **gross floor area - non-residential** of each **building** shall be used for a **manufacturing facility**.

5.1.4 Floor Space Index (FSI) Calculations in O2 and O3 Zones

Notwithstanding any other provisions in this By-law, in O2 and O3 zones where a **lot area** is greater than 0.70 ha, the lands comprising a complete site plan application, excluding the area of **private roads**, shall be considered as a phase of the overall property development, and shall be deemed to be a **lot** for the purposes of calculating **floor space index - non-residential** in Line 13.0 contained in Table 5.2.1 of this By-law. *(0121-2020/LPAT Order 2021 March 11)*

5.2 O1 TO O3 ZONES (OFFICE)

5.2.1 O1 to O3 Permitted Uses and Zone Regulations

All **buildings** and **structures** shall comply with the provisions contained in Parts 1 to 3 and Section 5.1 of this By-law, and the **uses** and zone regulations specified within the applicable zone column contained in Table 5.2.1 - O1 to O3 Permitted Uses and Zone Regulations. *(0121-2020/LPAT Order 2021 March 11)*

Table 5.2.1 - O1 to O3 Permitted Uses and Zone Regulations
(0308-2011), (0111-2019/LPAT Order 2021 March 09), (0121-2020/LPAT Order 2021 March 11)

Column	**A**	**B**	**C**	**D**
Line 1.0	**ZONES**	**O1** Minor Office	**O2** Major Office	**O3** General Office
PERMITTED USES				
2.0	**OFFICE**			
2.1	**Medical Office**	✓	✓	✓
2.2	**Office**	✓	✓	✓
3.0	COMMERCIAL			
3.1	**Commercial School**	✓		
3.2	**Financial Institution**	✓		
3.3	**Veterinary Clinic**	✓		
4.0	BUSINESS ACTIVITIES			
4.1	**Broadcasting/Communication Facility**		✓	✓
4.2	**Science and Technology Facility**		✓	✓
5.0	HOSPITALITY			
5.1	**Banquet Hall/Conference Centre/ Convention Centre**		✓	✓
5.2	**Overnight Accommodation**		✓	✓
6.0	OTHER			
6.1	University/College		✓	✓
ZONE REGULATIONS				
7.0	MINIMUM **LOT FRONTAGE**	n/a	30.0 m	30.0 m
8.0	MINIMUM **FRONT YARD**	4.5 m (1)	3.0 m (1)	3.0 m (1)
9.0	MINIMUM **INTERIOR SIDE YARD**	7.5 m (1)	4.5 m (1)	4.5 m (1)
10.0	MINIMUM **EXTERIOR SIDE YARD**	4.5 m (1)	4.5 m (1)	4.5 m (1)
11.0	MAXIMUM **EXTERIOR SIDE YARD**	n/a	7.0 m (1)	7.0 m (1)
12.0	MINIMUM **REAR YARD**	7.5 m (1)	4.5 m (1)	4.5 m (1)
13.0	MINIMUM **FLOOR SPACE INDEX - NON-RESIDENTIAL**	n/a	0.5	0.5
14.0	MAXIMUM **FLOOR SPACE INDEX - NON-RESIDENTIAL**	0.5	n/a	n/a
15.0	MINIMUM **HEIGHT**			
15.1	Minimum **building height**	n/a	12.0 m and 3 **storeys**	8.0 m and 2 **storeys**
15.2	Minimum **height** of the **first storey** of a **building** with frontage on **streets** identified on Schedule 5.2.1(1) of this By-law	n/a	5.0 m	4.5 m

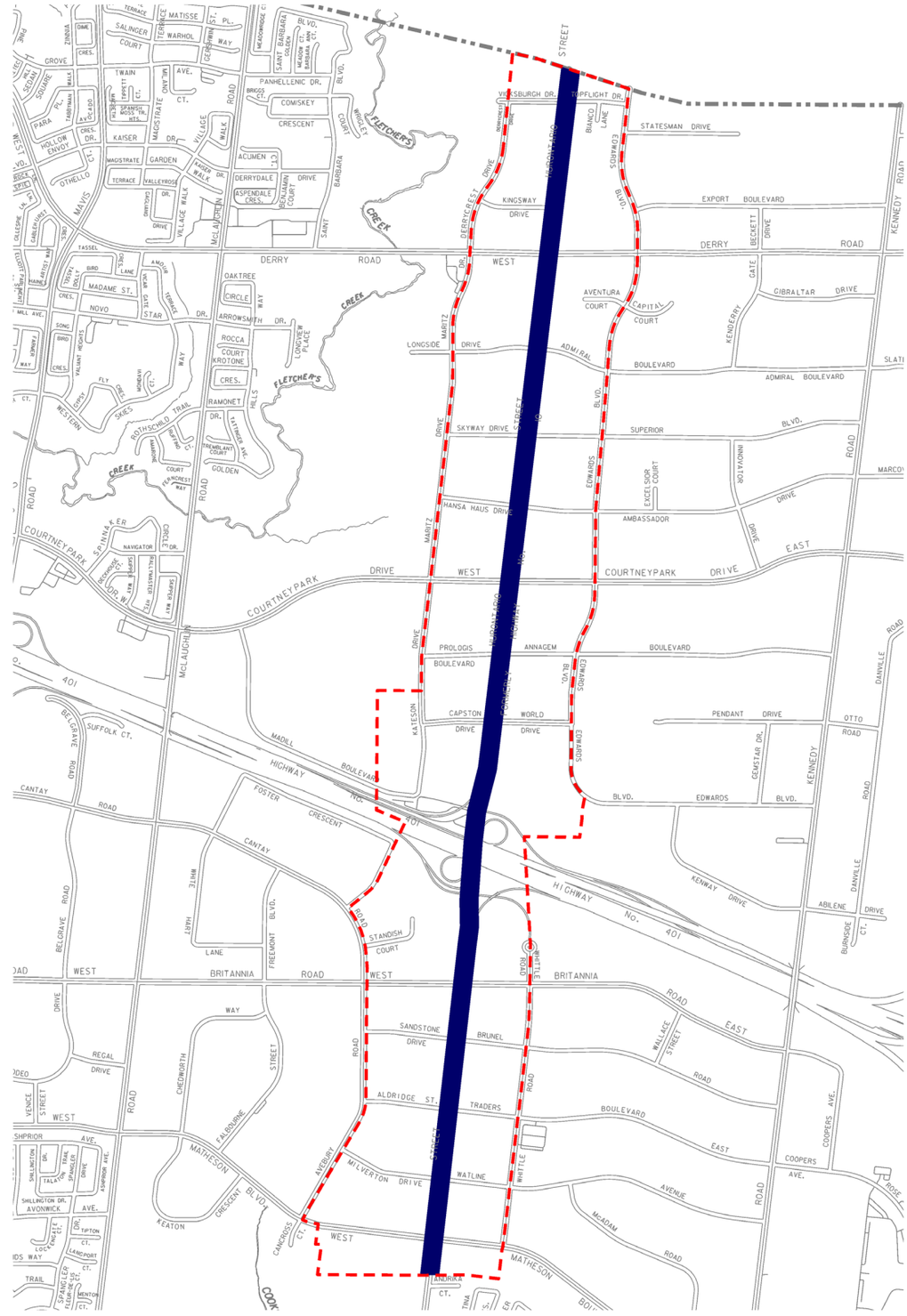
Table 5.2.1 continued on next page

Column	A	B	C	D
Line 1.0	**ZONES**	**O1** Minor Office	**O2** Major Office	**O3** General Office
Table 5.2.1 continued from previous page				
16.0	MAXIMUM **HEIGHT**	19.0 m and 6 **storeys**	n/a	n/a
17.0	MINIMUM SETBACK			
17.1	Minimum setback of a **first storey streetwall** of a **building** erected on a **lot** abutting a **street** identified on Schedules 5.2.1(1) and 5.2.1(2) of this By-law	n/a	3.0 m	3.0 m
18.0	MAXIMUM SETBACK			
18.1	Subject to Line 19.3 of this Table, the maximum setback of a **first storey streetwall** to a **street** identified on Schedules 5.2.1(1) and 5.2.1(2) of this By-law	n/a	5.0 m	5.0 m
18.2	Maximum length of a **first storey streetwall** of a **building** that may be set back beyond 5.0 m from a **street** identified on Schedule 5.2.1(2) of this By-law	n/a	25%	25%
19.0	**STREET** AND **BUILDING** FRONTAGES			
19.1	Minimum length of the **front lot line**, **front lot line - corner lot**, or **exterior side lot line** abutting a **street** identified on Schedule 5.2.1(1) of this By-law to be occupied by a **first storey streetwall**	n/a	80%	66%
19.2	Minimum length of the **front lot line**, **front lot line - corner lot**, or **exterior side lot line** abutting a **street** identified on Schedule 5.2.1(2) of this By-law to be occupied by a **first storey streetwall**	n/a	50%	n/a
19.3	Once Lines 19.1 and 19.2 of this Table have been met, Line 18.1 of this Table shall not apply	n/a	✓	✓
19.4	Minimum area of the **first storey streetwall** of a **building** facing a **street** identified on Schedule 5.2.1(1) of this By-law that shall contain glazing	n/a	75%	75%
19.5	Minimum area of the **first storey streetwall** of a **building** facing a **street** identified on Schedule 5.2.1(2) of this By-law that shall contain glazing	n/a	50%	50%
19.6	Where a **lot** abuts a **street** identified on Schedule 5.2.1(1) of this By-law, that **street** shall be deemed to be the **front lot line** and the **main front entrance** shall be located facing the **front lot line**	n/a	✓	✓
20.0	MINIMUM **LANDSCAPED BUFFER**			
20.1	Minimum depth of a **landscaped buffer** measured from a **lot line** that is a **street line** for all **streets** not identified on Schedules 5.2.1(1) and 5.2.1(2) of this By-law	4.5 m (2)	4.5 m (2)	4.5 m (2)

Table 5.2.1 continued on next page

Column	A	B	C	D
Line 1.0	**ZONES**	**O1** Minor Office	**O2** Major Office	**O3** General Office
Table 5.2.1 continued from previous page				
21.0	**DRIVEWAYS**, **AISLES**, **PARKING AREAS**, AND **LOADING SPACES**			
21.1	Minimum distance from a **loading space** to a **street** identified on Schedules 5.2.1(1) and 5.2.1(2) of this By-law	n/a	10.0 m	10.0 m
21.2	Minimum distance from a surface **parking space** and/or **parking area** to a **street** identified on Schedule 5.2.1(1) of this By-law	n/a	10.0 m	n/a
21.3	**Driveways** and **internal roads** may be shared with abutting lands	n/a	✓	✓
21.4	Minimum distance from an above grade **parking structure** to a **street** identified on Schedule 5.2.1(1) of this By-law	n/a	30.0 m	30.0 m
21.5	**Parking** and **loading spaces** shall not be located between a **streetwall** and a **lot line** that is a **street line**	✓	n/a	n/a

NOTES: (1) See also Subsection 2.1.17 of this By-law.
(2) See also Subsection 2.1.25 of this By-law.

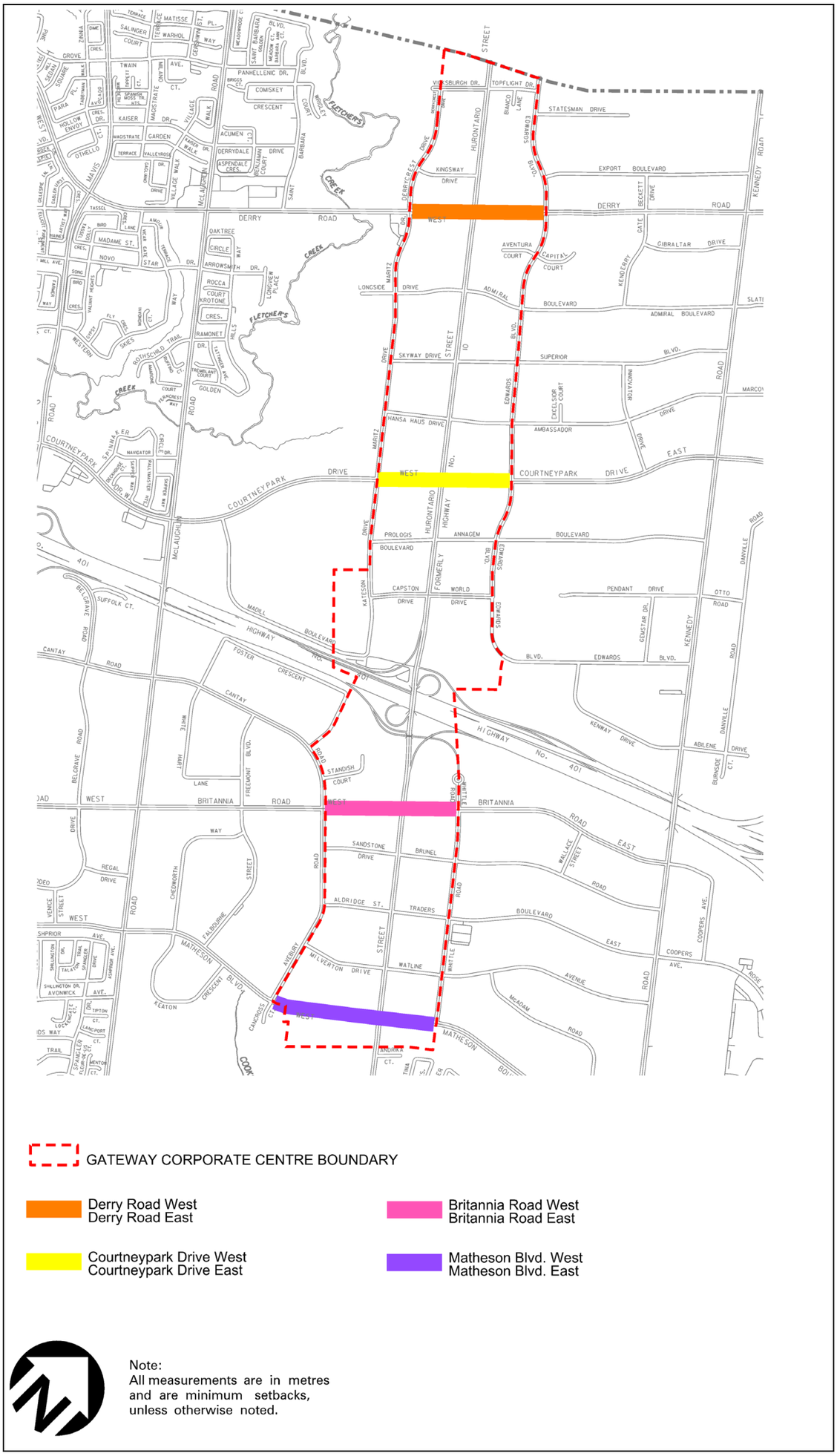


GATEWAY CORPORATE CENTRE BOUNDARY

HURONTARIO STREET

Note:
All measurements are in metres and are minimum setbacks, unless otherwise noted.

Schedule 5.2.1(1)
Maps 36W, 37E, 43W, 44E, 51W, 52E
(0121-2020/LPAT Order 2021 March 11)



Schedule 5.2.1(2)
Maps 36W, 37E, 43W, 44E, 51W, 52E
(0121-2020/LPAT Order 2021 March 11)

5.2.2 O1 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

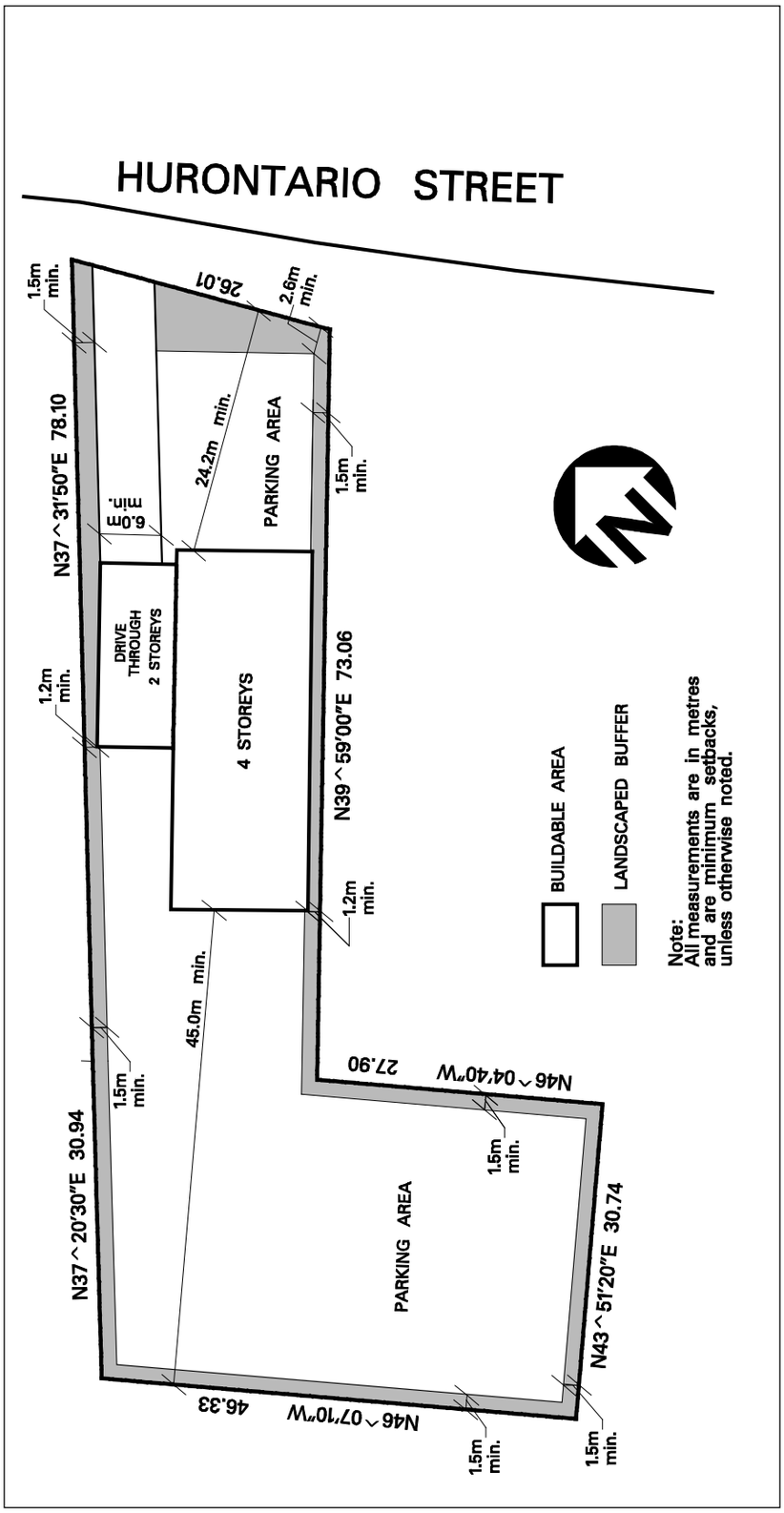
5.2.2.1	Exception: O1-1	Map # 18	By-law: 0217-2009, 0174-2017, 0121-2020/ LPAT Order 2021 March 11
In an O1-1 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
5.2.2.1.1	(1) **Long-Term Care Building** (2) **Overnight Accommodation**		

5.2.2.2	Exception: O1-2	Map # 23	By-law: 0121-2020/LPAT Order 2021 March 11
In an O1-2 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.2.2.1	Maximum **gross floor area - non-residential**		30 255 m^2

5.2.2.3	Exception: O1-3	Map # 07	By-law: 0121-2020/LPAT Order 2021 March 11
In an O1-3 zone the applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
5.2.2.3.1	Lands zoned O1-3 shall only be used for the following: (1) **Office** (2) Pharmacy (3) A cafeteria accessory to an **office building**, intended for the use of the occupants of the **building**		

5.2.2.4	Exception: O1-4	Map # 15	By-law: 0121-2020/LPAT Order 2021 March 11, 0199-2024
In an O1-4 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.2.4.1	(1) **Funeral Establishment**		
Regulation			
5.2.2.4.2	Maximum **gross floor area - non-residential**		3986.05 m^2
5.2.2.4.3	*deleted*		

5.2.2.5	Exception: O1-5	Map # 15	By-law: 0121-2020/LPAT Order 2021 March 11
In an O1-5 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.2.5.1	All site development plans shall comply with Schedule O1-5 of this Exception		



Schedule O1-5
Map 15

5.2.2.6	Exception: O1-6	Map # 29	By-law: 0174-2017, 0111-2019/LPAT Order 2021 March 09, 0121-2020/ LPAT Order 2021 March 11

In an O1-6 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

5.2.2.6.1
(1) **Apartment**
(2) Retail Commercial Use Accessory to an Office

Regulations

5.2.2.6.2 An **apartment** and/or retail commercial use accessory to an office, shall comply with the O1 zone regulations contained in Subsection 5.2.1 of this By-law except that:

(1)	maximum **floor space index - non-residential**	0.6 times the **lot area**
(2)	maximum **gross floor area - non-residential** of all office **buildings** or **structures**	18 210 m^2
(3)	maximum **gross floor area - non-residential** used for retail commercial uses accessory to an office	the lesser of 1 821 m^2 or 10% of the total **gross floor area** of any **building** used for an **office**
(4)	maximum number of **dwelling units** per hectare	250
(5)	for a development with an **office** and **apartment**, the maximum **floor space index**/densities permitted in Clauses 5.2.2.6.2(1) and (4) of this Exception shall apply, however, both **uses** are interchangeable and the **floor space index**/densities shall be calculated on the basis that one apartment **dwelling unit** may be replaced by 24 m^2 of **gross floor area - non-residential** used for **office**	
(6)	minimum setback to all **lot lines**	6.0 m
(7)	"Retail Commercial Use Accessory to an Office" means a **retail store** and/or **service establishment**	

5.2.2.7	Exception: O1-7	Map # 28	By-law: 0308-2011, 0174-2017, 0111-2019/ LPAT Order 2021 March 09, 0121-2020/LPAT Order 2021 March 11

In an O1-7 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

5.2.2.7.1
(1) **Apartment**
(2) **Office**/**apartment** combination
(3) Retail Commercial Use Accessory to an Office

Regulations

5.2.2.7.2 An **office** shall comply with the O1 zone regulations and contained in Subsection 5.2.1 of this By-law except that:

(1)	maximum **gross floor area - non-residential**	13 000 m^2
(2)	maximum **gross floor area - non-residential** used for a retail commercial use accessory to an office within each **building**	10% of the total **gross floor area - non-residential** of each **building**
(3)	minimum setback of all **buildings** and **structures** to any **lot line**	5.0 m
(4)	maximum **height**	25 **storeys**
(5)	"Retail Commercial Use Accessory to an Office" means a **retail store** and/or **service establishment**	

5.2.2.7.3 An **apartment** shall comply with the O1 zone regulations contained in Subsection 5.2.1 of this By-law except that:

(1)	maximum number of **dwelling units**	639
(2)	minimum setback of all **buildings** and **structures** to any **lot line**	5.0 m
(3)	maximum **height**	25 **storeys**

5.2.2.7.4 An **office/apartment** combination shall comply with the O1 zone regulations contained in Subsection 5.2.1 of this By-law except that:

(1)	maximum number of **dwelling units**	the lesser of 639 **dwelling units** or 247 units per hectare
(2)	maximum **gross floor area - non-residential**	the lesser of 13 000 m^2 or 0.5 times the **lot area**
(3)	maximum **gross floor area - non-residential** used for a retail commercial use accessory to an office within each **building**	10% of the total **gross floor area - non-residential** of each **building**
(4)	the maximum density/**gross floor area - non-residential** permitted in Clauses 5.2.2.7.4(1) and (2) of this Exception are interchangeable and shall be calculated on the basis that each **dwelling unit** shall be deemed to occupy 20.34 m^2 of the total **gross floor area - non-residential** for all **buildings** and **structures**, or parts thereof, which are used for **offices** and retail commercial uses accessory to an office	

Exception O1-7 continued on next page

5.2.2.7	Exception: O1-7	Map # 28	By-law: 0308-2011, 0174-2017, 0111-2019/ LPAT Order 2021 March 09, 0121-2020/LPAT Order 2021 March 11
Exception O1-7 continued from previous page			
5.2.2.7.4 (continued)	(5)	minimum setback of all **buildings** and **structures** to any **lot line**	5.0 m
	(6)	maximum **height**	25 **storeys**
	(7)	"Retail Commercial Use Accessory to an Office/Apartment Combination" means a **retail store** and/or **service establishment**	

5.2.2.8	Exception: O1-8	Map #	By-law: 0174-2017, 0111-2019/LPAT Order 2021 March 09, 0121-2020/ LPAT Order 2021 March 11, *deleted by OLT Order 2024 January 10/0125-2025*

5.2.2.9	Exception: O1-9	Map #	By-law: *deleted by 0191-2018*, 0121-2020/LPAT Order 2021 March 11

5.2.2.10	Exception: O1-10	Map #	By-law: 0121-2020/LPAT Order 2021 March 11, *deleted by OLT Order 2023 June 05*

5.2.2.11	Exception: O1-11	Map # 14	By-law: 0121-2020/LPAT Order 2021 March 11
In an O1-11 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.2.11.1	Access shall be permitted to lands zoned RA3-11		

5.2.2.12	Exception: O1-12	Map # 18	By-law: 0121-2020/LPAT Order 2021 March 11
In an O1-12 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
5.2.2.12.1	(1) **Motor vehicle rental facility** accessory to an **office** or **medical office** (2) **Retail store** accessory to an **office** or **medical office** (3) Limousine dispatching office accessory to an **office** or **medical office** (4) Indoor recreational establishment excluding a children's play facility, accessory to an **office** or **medical office** (5) **Convenience restaurant** accessory to an **office** or **medical office**		
Regulations			
5.2.2.12.2	Maximum **gross floor area - non-residential** used for **medical office**		3 000 m^2
5.2.2.12.3	Maximum **gross floor area - non-residential** used for **restaurants** and **convenience restaurants**		1 570 m^2
5.2.2.12.4	Maximum **gross floor area - non-residential** used for **take-out restaurant**		140 m^2
5.2.2.12.5	Maximum **gross floor area - non-residential** used for accessory uses		35%
5.2.2.12.6	Minimum **interior side yard**		7.0 m
5.2.2.12.7	Minimum **rear yard**		7.0 m
5.2.2.12.8	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential**		4.6

5.2.2.13	Exception: O1-13	Map # 22	By-law: 0087-2009, 0121-2020/LPAT Order 2021 March 11, 0217-2023
In an O1-13 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Regulations			
5.2.2.13.1	*deleted*		
5.2.2.13.2	Maximum **gross floor area - non-residential** used for **uses** accessory to a permitted **use**		22%

5.2.2.14	Exception: O1-14	Map #	By-law: 0212-2012, 0121-2020/LPAT Order 2021 March 11, *deleted by 0261-2021*

5.2.2.15	Exception: O1-15	Map # 57	By-law: 0123-2016, 0121-2020/LPAT Order 2021 March 11
In an O1-15 zone the permitted **uses** and applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
5.2.2.15.1	The following **accessory uses** shall only be permitted: (1) Medical Supply and Equipment Store (2) Pharmacy (3) **Day Care**		
Use Not Permitted			
5.2.2.15.2	(1) **Veterinary Clinic**		
Regulations			
5.2.2.15.3	The regulations of Subsection 5.1.2 of this By-law shall not apply		
5.2.2.15.4	Maximum percentage **gross floor area - non-residential** of a **building** for any **uses** contained in Sentence 5.2.2.15.1 of this Exception		20%
5.2.2.15.5	Minimum **exterior side yard**		7.5 m
5.2.2.15.6	Maximum **building height**		13.0 m and 4 **storeys**

5.2.2.16	Exception: O1-16	Map # 11	By-law: 0164-2018, 0121-2020/LPAT Order 2021 March 11
In an O1-16 zone the applicable regulations shall be as specified for an O1 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
5.2.2.16.1	Lands zoned O1-16 shall only be used for the following: (1) **Office**		
Regulations			
5.2.2.16.2	Minimum **interior side yard**		3.5 m
5.2.2.16.3	Maximum **gross floor area - non-residential**		1 200 m^2
5.2.2.16.4	Maximum **building height**		9.0 m and 2 **storeys**
5.2.2.16.5	Minimum **landscaped buffer - interior side yard**		3.0 m

5.2.3 O2 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

5.2.3.1	Exception: O2-1	Map # 36W, 37E, 43W, 44E, 51W, 52E	By-law: 0121-2020/LPAT Order 2021 March 11
In an O2-1 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.3.1.1	(1) **Uses** legally **existing** on the date of passing of this By-law		
Regulations			
5.2.3.1.2	**Uses** contained in Sentence 5.2.3.1.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.3.1.3	The enlargement or alteration of a **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		

5.2.3.2	Exception: O2-2	Map # 52E	By-law: 0121-2020/LPAT Order 2021 March 11
In an O2-2 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.3.2.1	The **lot line** abutting Derrycrest Drive shall be deemed to be the **front lot line**		

5.2.3.3	Exception: O2-3	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O2-3 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Regulations			
5.2.3.3.1	The regulations of Lines 13.0, 19.1 and 19.2 contained in Table 5.2.1 of this By-law shall not apply		
5.2.3.3.2	Maximum setback of a **streetwall** from Hurontario Street		14.0 m
5.2.3.3.3	Minimum length of the **lot line** abutting Hurontario Street to be occupied by a **first storey streetwall**		39.0 m
5.2.3.3.4	Minimum depth of a **landscaped buffer** between Hurontario Street and a **parking area**		10.0 m
5.2.3.3.5	Required parking and **aisles** may be located on abutting lands zoned O2-4		

5.2.3.4	Exception: O2-4	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O2-4 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.3.4.1	Required parking and **aisles** may be located on abutting lands zoned O2-3		

5.2.3.5	Exception: O2-5	Map # 43W	By-law: 0121-2020/LPAT Order 2021 March 11
In an O2-5 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.3.5.1	(1) **Uses** legally **existing** on the date of passing of this By-law		
Regulations			
5.2.3.5.2	**Uses** contained in Sentence 5.2.3.5.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.3.5.3	The enlargement or alteration of a **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		
5.2.3.5.4	Required parking for lands zoned O2-5 may be located on lands zoned E1-15 and O3-4		

5.2.3.6	Exception: O2-6	Map # 36W	By-law: 0121-2020/LPAT Order 2021 March 11
In an O2-6 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
5.2.3.6.1	(1) **Uses** legally **existing** on the date of passing of this By-law (2) C3 **uses** contained in Table 6.2.1 of this By-law, except: (2.1) **Motor Vehicle Sales**, **Leasing and/or Rental Facility - Restricted** (2.2) **Motor Vehicle Rental Facility** (2.3) **Convenience Restaurant**		
Regulations			
5.2.3.6.2	**Uses** contained in Sentence 5.2.3.6.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.3.6.3	The enlargement or alteration of a **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		

5.2.3.7	Exception: O2-7	Map # 37E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O2-7 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Regulations			
5.2.3.7.1	The regulations of Lines 19.1 and 19.2 contained in Table 5.2.1 of this By-law shall not apply		
5.2.3.7.2	Minimum **floor space index - non-residential**		0.45
5.2.3.7.3	Minimum length of the **lot line** abutting Hurontario Street to be occupied by a **first storey streetwall**		39.0 m

5.2.3.8	Exception: O2-8	Map # 43W	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O2-8 zone the permitted **uses** and applicable regulations shall be as specified for an O2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.3.8.1	(1) **Uses** legally **existing** on the date of passing of this By-law		
Regulations			
5.2.3.8.2	The regulations of Lines 19.1 and 19.2 contained in Table 5.2.1 of this By-law shall not apply		
5.2.3.8.3	**Uses** contained in Sentence 5.2.3.8.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.3.8.4	Minimum **floor space index - non-residential**		0.45
5.2.3.8.5	Maximum setback of a **first storey streetwall** from Hurontario Street		14.0 m
5.2.3.8.6	Minimum length of the **lot line** abutting Hurontario Street to be occupied by a **first storey streetwall**		39.0 m
5.2.3.8.7	Minimum depth of a **landscaped buffer** between Hurontario Street and a **parking area**		10.0 m
5.2.3.8.8	Expansion or alteration to any **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		

5.2.4 O3 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

5.2.4.1	Exception: O3-1	Map # 36W, 37E, 43W	By-law: 0121-2020/LPAT Order 2021 March 11
In an O3-1 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.4.1.1	(1) **Uses** legally **existing** on the date of passing of this By-law		
Regulations			
5.2.4.1.2	**Uses** contained in Sentence 5.2.4.1.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.4.1.3	The enlargement or alteration of a **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		
5.2.4.1.4	Required parking may be located on abutting lands zoned O3-7		

5.2.4.2	Exception: O3-2	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O3-2 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
5.2.4.2.1	(1) **Manufacturing Facility** (2) **Warehouse/Distribution Facility** (3) **Commercial School**		
Regulations			
5.2.4.2.2	The regulations of Lines 13.0 and 19.4 contained in Table 5.2.1 of this By-law shall not apply		
5.2.4.2.3	A **manufacturing facility** and/or **warehouse/distribution facility** shall comply with the following:		
	(1) minimum **height** of all **buildings** and **structures**		11.5 m
	(2) any **office** component of the **building** shall be located abutting Hurontario Street		
	(3) an **aisle** shall be permitted between the **building** and a **lot line** abutting Hurontario Street		
	(4) minimum distance from a surface **parking space** to Hurontario Street		25.0 m
5.2.4.2.4	Required parking and **aisles** may be located on abutting lands zoned E1-6		

5.2.4.3	Exception: O3-3	Map # 37E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O3-3 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.4.3.1	(1) Science and Technology Facility		
Regulations			
5.2.4.3.2	The regulations of Lines 19.1 and 19.2 contained in Table 5.2.1 of this By-law shall not apply		
5.2.4.3.3	Maximum setback to the **streetwall** of an addition to an **existing building** from Hurontario Street		48.0 m
5.2.4.3.4	Minimum length of **lot frontage** along Hurontario Street to be occupied by a **streetwall** of a **building** or **structure**		39.0 m
5.2.4.3.5	Maximum of two **aisles** accommodating no more than four rows of parking shall be permitted in the **front yard** for an addition to an **existing building**		
5.2.4.3.6	Light assembly shall not be permitted in a **building** that is within 100.0 m from a **street** identified on Schedule 5.2.1(1) of this By-law		
5.2.4.3.7	Expansion or alteration to any **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted and shall not be subject to Line 13.0 contained in Table 5.2.1 of this By-law		
5.2.4.3.8	"Science and Technology Facility" means a **building**, **structure** or part thereof, used for one or more of the following: scientific and technological research and development including laboratories, **pilot plants**, **prototype production facilities**, light assembly up to a maximum of 30% of the total **gross floor area - non-residential** including any accessory **manufacturing facility** use, computer and information technology development, including hardware and software, data processing services and engineering and professional design services		

5.2.4.4	Exception: O3-4	Map # 43W	By-law: 0121-2020/LPAT Order 2021 March 11
In an O3-4 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.4.4.1	(1) Required parking for lands zoned O2-5		

5.2.4.5	Exception: O3-5	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11, 0175-2021

In an O3-5 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:

Regulations

5.2.4.5.1 The O3 zone regulations contained in Table 5.2.1 of this By-law shall not apply for the construction of one traction power substation as permitted in Sentence 5.2.4.5.2 of this Exception

5.2.4.5.2 Notwithstanding Clause (3) of the Holding Provision, the holding symbol H will not apply to a portion of the lands zoned O3-5 to permit one traction power substation on all lands zoned O3-5

Holding Provision

The holding symbol H is to be removed from the whole or any part of the lands zoned H-O3-5 by further amendment to Map 44E of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements:

(1) provision of any outstanding technical plans, studies, and reports including a concept plan which deals with traffic circulation, goods movement, pedestrian connections, and phasing of development, amongst other matters; a functional servicing report with drainage, grading, and servicing plans; draft reference plan; stage I and II archaeological assessment; and an updated Transportation Study to the satisfaction of the City of Mississauga ("City") and the Region of Peel;

(2) delivery of executed Development and Servicing Agreements in a form satisfactory to the City, which addresses any issues that may be identified through Clause (1); required easement for servicing and access purposes to the abutting property at 6710 Hurontario Street; gratuitous dedication to the City of the lands for the extension of Ambassador Drive; gratuitous dedication to the City of a road widening across the Hurontario Street frontage; submission of a streetscape master plan for the Hurontario Street frontage and associated securities; any additional securities, fees, cash contribution and insurance;

(3) any additional lands required or technical issues identified in the Transit Project Assessment Process (TPAP) for the Light Rail Transit are to be addressed to the satisfaction of the City.

5.2.4.6	Exception: O3-6	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11, 0175-2021

In an O3-6 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone:

Holding Provision

The holding symbol H is to be removed from the whole or any part of the lands zoned H-O3-6 by further amendment to Map 44E of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements:

(1) provision of any outstanding technical plans, studies and reports including a concept plan which deals with traffic circulation, goods movement, pedestrian connections and phasing of development, amongst other matters; a functional servicing report with drainage, grading and servicing plans; draft reference plan; stage I and II archaeological assessment; and an updated Transportation Study to the satisfaction of the City of Mississauga ("City") and the Region of Peel;

(2) delivery of executed Development and Servicing Agreements in a form satisfactory to the City, which addresses any issues that may be identified through Clause (1); required easement for servicing and access purposes to the abutting property at 6710 Hurontario Street; gratuitous dedication to the City of the lands for the extension of Ambassador Drive; any additional securities, fees, cash contribution and insurance.

5.2.4.7	Exception: O3-7	Map # 37E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15, 0217-2023

In an O3-7 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

5.2.4.7.1 In an **existing building**, **structure**, or part thereof, legally **existing** on the date of passing of this By-law:

(1) **Restaurant**
(2) **Take-out Restaurant**
(3) **Financial Institution**
(4) **Entertainment Establishment**
(5) **Recreational Establishment**
(6) **Day Care**

Regulations

5.2.4.7.2	Minimum **floor space index - non-residential**	0.1
5.2.4.7.3	Required parking and **aisles** may be located on abutting lands zoned O3-11	

5.2.4.8	Exception: O3-8	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O3-8 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Regulation			
5.2.4.8.1	Required parking and **aisles** may be located on abutting lands zoned E1-2		

5.2.4.9	Exception: O3-9	Map # 43W	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O3-9 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.4.9.1	(1) **Uses** legally **existing** on the date of passing of this By-law		
Regulations			
5.2.4.9.2	**Uses** contained in Sentence 5.2.4.9.1 of this Exception shall only be permitted in **buildings** or **structures** legally **existing** on the date of passing of this By-law		
5.2.4.9.3	Lands zoned O3-9 and E1-1 shall be considered one **lot** for the purpose of Lines 3.0 to 12.5 contained in Table 8.2.1 of this By-law		
5.2.4.9.4	Minimum **floor space index - non-residential**		0.44
5.2.4.9.5	Expansion or alteration to any **building** or **structure** legally **existing** on the date of passing of this By-law shall be permitted up to 10% of the **existing gross floor area - non-residential** of all **buildings** and **structures**		
5.2.4.9.6	Required parking and **aisles** may be located on abutting lands zoned E1-1		

5.2.4.10	Exception: O3-10	Map # 44E	By-law: 0121-2020/LPAT Order 2021 March 11/OLT Order 2021 November 15
In an O3-10 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
5.2.4.10.1	(1) **Manufacturing Facility** (2) **Warehouse/Distribution Facility** (3) **Commercial School**		
Regulations			
5.2.4.10.2	The regulations of Lines 13.0 and 19.4 contained in Table 5.2.1 of this By-law shall not apply		
5.2.4.10.3	Minimum **height** of all **buildings** and **structures** wholly or partially used as a **manufacturing facility** or **warehouse/ distribution facility**		11.5 m
5.2.4.10.4	Required parking and **aisles** may be located on abutting lands zoned E1-5		

5.2.4.11	Exception: O3-11	Map # 37E	By-law: 0121-2020/OLT Order 2021 November 15
In an O3-11 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
5.2.4.11.1	(1) Science and Technology Facility		
Regulations			
5.2.4.11.2	For the purposes of this By-law, all lands zoned O3-11 shall be considered one **lot**		
5.2.4.11.3	Light assembly shall not be permitted in a **building** that is within 100.0 m from a **street** identified on Schedule 5.2.1(1) of this By-law		
5.2.4.11.4	Required parking and **aisles** may be located on abutting lands zoned O3-7		
5.2.4.11.5	"Science and Technology Facility" means a **building**, **structure** or part thereof, used for one or more of the following: scientific and technological research and development including laboratories, **pilot plants**, **prototype production facilities**, light assembly up to a maximum of 30% of the total **gross floor area - non-residential** including any accessory **manufacturing facility** use, computer and information technology development, including hardware and software, data processing services and engineering and professional design services		

5.2.4.12	Exception: O3-12	Map # 44E	By-law: 0121-2020/OLT Order 2021 November 15, 0175-2021, 0199-2024
In an O3-12 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Regulations			
5.2.4.12.1	The provisions contained in Subsection 2.1.14 and the regulations of Line 19.6 contained in Table 5.2.1 of this By-law shall not apply		
5.2.4.12.2	Minimum southerly **interior side yard**		9.0 m
5.2.4.12.3	Maximum encroachment of a hydro electric transformer and pad into a required **yard**		4.5 m
5.2.4.12.4	Maximum **gross floor area - non-residential** used for all banquet facilities and meeting rooms		1 165 m^2
5.2.4.12.5	Minimum area of the **first storey streetwall** of a **building** facing a **street** identified on Schedule 5.2.1(1) of this By-law that shall contain glazing		60%
5.2.4.12.6	Minimum number of **loading spaces**		2

Exception O3-12 continued on next page

5.2.4.12	Exception: O3-12	Map # 44E	By-law: 0121-2020/OLT Order 2021 November 15, 0175-2021, 0199-2024
Exception O3-12 continued from previous page			
Holding Provision			
The holding symbol H is to be removed from the whole or any part of the lands zoned H-O3-12 by further amendment to Map 44E of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements: (1) approval and execution of a Development Agreement in a form and on terms satisfactory to the City of Mississauga ("City") and Region of Peel ("Region"), to capture items including but not limited to: land dedication and easements; municipal infrastructure detailed design; private roads construction/restoration; securities, fees, and insurance; (2) receipt of any additional supporting technical reports, studies, drawings and plans as required; (3) conveyance to the City and registration of a road widening towards the ultimate 45.0 m Hurontario Street right-of-way as identified in Mississauga Official Plan; (4) conveyance to the City and registration of a 0.3 m reserve across the east frontage of these lands; (5) confirmation to be provided to the City's Transportation and Works Department that satisfactory arrangements have been made with adjacent landowners for the construction of the private roads south and west of the site, and related works to facilitate access into the subject site; (6) any additional lands required or technical issues identified in the Transit Project Assessment Process ("TPAP") for the Light Rail Transit are to be addressed to the satisfaction of the City.			

5.2.4.13	Exception: O3-13	Map # 43W	By-law: 0121-2020/OLT Order 2021 November 15
In an O3-13 zone the permitted **uses** and applicable regulations shall be as specified for an O3 zone except that the following **uses**/regulations shall apply:			
Regulations			
5.2.4.13.1	Minimum **floor space index - non-residential**		0.45
5.2.4.13.2	Required parking and **aisles** may be located on abutting lands zoned E1-8		